VALIANT LAW

WILLS CHECKLIST

Personal Information

Full Name:

_____

_____

Address for Service:

_____

_____

Telephone: (H) _____ (C) _____ (Other) _____

Occupation: _____

Employer Information:

_____

_____

_____

Date of Birth:

_____

_____

Place of Birth:

_____

_____

Citizenship:

_____

_____

Marital Status: _____

Full name of Spouse: _____

Date and Place of Marriage: _____

Do you have a Domestic Contract? _____

Previous Marriage(s): _____

Full name(s) of Ex-Spouse(s):

_____

_____

Do you have any support obligations – spousal or child?:

_____

_____

_____

Full names of children from **previous** relationship:

Name:	Date and Place of Birth:

Full names of children from **current** relationship:

Name:	Date and Place of Birth:

Are any of your children non-residents of Canada? If so, please provide addresses.

Are any of your children married?
If so, please provide details of spouse and grandchildren, if any.

Details of any relevant personal situations (i.e. disabled or spendthrift spouse and/or children)

Accountant Information:

Asset Information

Real Estate:

Home:

Name(s) on title and how is it owned? (i.e. Joint Tenancy, Tenants in common):

_____

_____

Current Market Value: _____

Value of Mortgages or other Encumbrances: _____

Acquisition Cost and Date: _____

Other Real Estate:

How many properties? _____

Address(es):

_____

_____

_____

Name(s) on title and how is it owned? (i.e. Joint Tenancy, Tenants in common):

_____

_____

Current Mark Value(s):

_____

_____

Value of Mortgages or other Encumbrances: _____

Acquisition Cost and Date: _____

RRSP's:

Plan Holder	Issued By	Beneficiary	Value to Estate

DPSP's and Pensions:

Plan Holder	Issued By	Beneficiary	Value to Estate

Insurance:

Name and phone number of Insurance Advisor:

_____

_____

Insurance Policies:

	Policy 1	Policy 2	Policy 3
Issued By and Policy Number			
Name of Owner			
Name of Life Insured			
Name of Beneficiary			
Value to Estate			

Money on Deposit:

Name and Address of Bank or Depository	Type of Account and No.	Ownership	Approximate Amount

Investment Portfolio Outside RRSP's
(i.e. Stocks, Bonds, Debentures, Guaranteed Investment Certificates, etc.):

Name of Investment Advisor: _____

Approximate Value of Portfolio: $_____

Attach copy of most recent portfolio statement(s)

Do you own any stocks, bonds, debentures, GICs etc. outside of your portfolio(s)?
If yes, please attach a list including current value, acquisition cost and date and location of instrument.

Do you have any interests in a partnership or an unincorporated business?

If yes, please describe and supply copies of all agreements

_____
_____
_____

Debts owing <u>by you</u> including promissory notes:

Name of Creditor	Amount	Maturity	Other Terms

Debts owing <u>to you</u> including promissory notes:

Name of Creditor	Amount	Maturity	Other Terms

Automobiles, Boats, and Recreation Vehicles:

Description	Ownership	Value

ANY heirlooms, artwork, jewellery and any collections, etc. OF SPECIAL NOTE?

_____

_____

_____

_____

ANY household contents and furniture OF SPECIAL NOTE?

_____

_____

_____

_____

Other Assets:

(i) an interest in an inter vivos or testamentary trust

(ii) a power of appointment (obtain copy of document)

Total value of assets: $ _____

Total value of debts: $ _____

Approximate net value of estate: $ _____

WILL INSTRUCTIONS
(to be used with Will Information Sheet)

Date: _____

Executors and Trustees:

Who will administer your estate and distribute your assets or manage trusts established for your beneficiaries in your Will when you pass away? You may wish to consider appointing your spouse either alone or in conjunction with one or more other people.

List the full name(s) of the individual(s) you wish to appoint as your Executors and Trustees and their relationship to you (i.e. wife, friend, brother, sister, son, daughter, cousin, etc.):

_____
_____
_____
_____

In the event that your appointed Executor(s) and Trustee(s) can not act for any reason, it is recommended that you appoint at least one alternate. This is especially important if you have only chosen ONE Executor and Trustee.

Name(s) of Alternate(s) and their relationship to you:

_____
_____
_____
_____

Unless you indicate otherwise, where there are two or more Executors and Trustees appointed all decisions must be unanimous. Please indicate if you would prefer that decisions be made in a manner other than unanimously:

Majority decision binding?

Yes _____ No _____

Should any beneficiary be a part of majority or have a veto right?

Yes _____ No _____

Other decision-making provisions, (for example the appointment of an arbitrator or umpire in the case of a deadlock):

_____
_____
_____
_____

Dispositions:

Personal Effects:

You should consider whether there are any personal effects that should be dealt with specifically in your Will. You may list specific assets in your Will that your Trustee will be legally bound to distribute. However, should you change your mind or acquire new personal assets which you would like to dispose of, you will have to amend your Will. It may be preferable to deal with your personal effects in a memorandum of wishes. This is a memo that you would prepare at any point in time. It does not have to be in any specific legal language because it will not form part of your public Will. You will be free to amend this memo whenever you wish without amending your Will. Note this is not legally binding on your Trustees. You may also choose to leave all of your personal effects to a group of individuals, such as your children or grandchildren and let them decide how the assets are to be divided.

Questions to consider:

1. If spouse survives, do you want all personal items to go to your spouse?
   Yes _____ No _____

2. If no spouse surviving, and children survive, all to children or issue equally?
   Yes _____ No _____

   If yes, how is the distribution to be affected?
   - In Trustees' sole discretion Yes _____ No _____
     OR
   - As children agree Yes _____ No _____
     OR
   - By way of a binding memorandum Yes _____ No _____
     OR
   - By way of non-binding memorandum Yes _____ No _____

Do you wish to make gifts of personal property to persons other than your spouse and children, even if you have a spouse and/or children who survive you?:

Beneficiary and relationship to you	**Gift**

If you do not have a spouse or children, would you like your personal effects to be left to a specific person or group of people? Please list the individuals and their relationship to you:

Beneficiary	**Gift**

Real Estate:

Do you wish to leave your home or any other real estate that you own to a particular person or people? You may wish to give someone the right to use the property during their lifetime with the provision that when they pass away the property is to go to someone else. This type of arrangement is a trust and requires you to consider matters such as who will pay ongoing expenses, such as insurance and regular maintenance costs, who will be responsible for capital repairs outside of the course of everyday living expenses, etc. If you wish to leave property, for example a cottage, for the use and enjoyment of more than one person, how is the property to be shared? Do you wish to give someone the option of acquiring real estate as part of his or her share of your entire estate?

Please describe the property you wish to deal with and set out how the property is to be distributed:

_____

_____

_____

_____

Insurance Proceeds:

Who should receive the proceeds of any insurance policies on your life?

_____

_____

_____

If that person has predeceased you, who should then receive the proceeds of any insurance policies on your life?

_____

_____

_____

RRSP/RRIF or Pension Proceeds:

Who should receive the proceeds of any RRSP, RRIF or pensions of yours?

_____

_____

If that person has predeceased you, who should then receive the proceeds of any RRSP, RRIF or pensions of yours?

_____

_____

Shares of Family Business:

If you own shares of a family business or private corporation, these shares may require special consideration. For example, should the shares be given to a particular family member or is it more appropriate for the shares to be given or sold to a business associate? Should the shares that have special voting rights be dealt with differently than the shares that participate in the growth of the business? Are there agreements or contracts that obligate you in some manner, such as Shareholders' Agreement or a buy/sell agreement? Are there tax issues that will dictate what should be done with the shares? Please advise of any special dispositions?

_____

_____

_____

_____

Legacies:

Do you want to make a cash gift to anyone, for example to relatives, friends, employees, charities, etc. Are there any conditions to be placed on the gift, for example the person must be in your employ at the time of your death? If the person is not alive when you die, should the money go to someone else, such as the person's children?

Name	Relationship	Amount	Name of Alternate if the person has predeceased

You may also want to make cash gifts to someone or a group of people, such as grandchildren or nieces and nephews, that will be held in trust for them until they reach a certain age or which can be paid out over a period of several years, for e.g. 50% at one age and the remaining 50% when the person attains another age. Please provide details.

_____

_____

_____

_____

Residue:

Once all of the gifts of specific assets or cash amount have been distributed and all taxes and debts have been paid, the remaining assets and/or money left in your estate is called the "residue". Before deciding how you wish to deal with the residue it is important to understand the value of the residue. Your decisions about whether to leave the residue outright to a particular person or in trust for a period of time may differ depending on the value of the residue.

There are two main options when deciding how distributions of the residue are to take place. First, you may give the residue outright to one or more beneficiaries. This means that if the beneficiaries survive you the assets are given to the beneficiaries to deal with as they like. They will have complete control over the assets.

Alternatively, you may establish a trust whereby the Trustees of your estate hold the assets for the benefit of the named beneficiaries for a stipulated period of time. The Trustees will manage the property in accordance with the terms and conditions that you establish in your Will. You may set out how earned income is to be paid and when the capital is to be distributed and to whom. This type of arrangement is particularly appropriate in the following solutions:

a. Where the intended beneficiary is handicapped;
b. Where the intended beneficiary is subject to substantial creditor claims, such as potential divorce or separation proceedings;
c. Where the intended beneficiaries are under the age of majority or are financially irresponsible or immature;
d. Where the assets are substantial and there is a tax advantage to be gained;
e. Where a second marriage is involved and the spouse is to have the benefit of the assets during his/her lifetime but the assets are to be preserved for the children who are to have the interest in the assets at the end of the day.

Bearing the matters discussed above in mind, please answer the following questions:

A.

1. If your spouse is living at your death will he/she receive the residue? Yes ___ No ___
2. If Yes, is it to be an outright distribution? Yes ___ No ___
3. Or a trust for life? Yes ___ No ___
4. If the latter, is all income to be paid to spouse? Yes ___ No ___
5. Is there to be a power to encroach on capital? Yes ___ No ___

B.

If spouse is not living at your death or if the assets have been held in a life trust then on the death of your spouse do you want the residue to go to all of your children?

Yes ___ No ___

Is there to be a gift-over to your grandchildren if a child of yours is not then alive

Yes ___ No ___

C.

If the residue is to be held in trust for your children, at what age or ages do you want the capital to be distributed and in what percentages or amounts:

Age	%	Age	%	Age	%	Age	%

Should all of the income earned on the assets in the trust be paid to the beneficiary in the meantime?

Or is the payment of income to be in the Trustees' discretion? Yes ___ No ___

Should the Trustees have the power to accumulate income? Yes ___ No ___

Should the Trustees have the power to encroach on capital? Yes ___ No ___

Do you wish to include any special terms/trust provisions/instructions?

_____

_____

_____

_____

D.

If you have no spouse and/or no children either currently or in the event that you have left your estate to your spouse and/or children and you are involved in a common accident such that you have no spouse or children living at your death, then how would you like the residue to be distributed:

_____

_____

_____

_____

Guardians of Minor Children:

You may appoint one or more persons to be the Guardian(s) of your children upon your death. If the other parent to your children is alive at your death, he or she will be the Guardian. It is the Will of the second parent to die that will name the proposed Guardian(s). The Wills of both parents should therefore be consistent. The Guardian named in the Will has the authority to act for a period of 90 days from the date of the last parent's death. On or before the expiration of the 90-day period, an application must be made to the Court for an order formally appointing the named individual(s) as the Guardians of the minor children.

Name(s) of Guardians (Note that if you are naming a married couple please advise which of the two, if any, is to have custody in the event that they are no longer married on your death)

_____

_____

You should consider naming an alternate Guardian in the event that the first named Guardian is unable to act

_____

_____

Any special instructions for the Guardian(s)?

_____

_____

Power of Attorney for Property

You may name a person to act on your behalf with respect to your financial matters in the event that you are incapacitated or in the event that you are unavailable for any reason. This person is your "Attorney" for property. Your Attorney will be able to do anything that you can do with respect to financial matters except they cannot rewrite your Will.

Name of Attorney(s) and their relationship to you:

_____

_____

Alternate(s):

_____

_____

How should your Attorneys act?

By majority _____

Jointly _____

And/or Severally? _____

Power of Attorney for Personal Care

You may also authorize a person to make decisions for you in connection with medical treatment, admission to care facilities and personal care decisions. This Personal Care Attorney will only make these decisions for you when it is determined that you are incapable of making these decisions for yourself. The Attorney must make the decision that you would have made if capable. As a result, it is important that your Attorney know what your decision would have been. Any instructions that you feel particularly strongly about should be relayed to your Attorney or included in your Personal Care Power of Attorney.

Name of Attorney(s) and their relationship to you:

_____

_____

Alternate(s):

_____

_____

How should your Attorneys act?

By majority _____

Jointly _____

And/or Severally? _____

If you wish to include a "living will" component in your Personal Care Power of Attorney please include a description of your special instructions relating to the giving or withholding of treatment:

_____

_____

_____

_____